CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

1. Definition. "Confidential Information" means any information disclosed by one party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential.

2. Obligations. The receiving party shall not disclose Confidential Information to any third party and shall use it solely to evaluate the proposed transaction.

3. Term. The obligations in this Agreement survive for three (3) years from the date of disclosure.